

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO**

Civil Action No. 20-cv-00076-RBJ

ANITA MARTIN,

Plaintiff,

v.

PUBLIC SERVICE COMPANY OF COLORADO,
d/b/a XCEL ENERGY,
a wholly owned subsidiary of Xcel Energy Inc.,

Defendant.

VERDICT FORM

We, the Jury, present our Answers to Questions submitted by the Court, to which we have unanimously agreed:

I. TITLE VII: DISCRIMINATION BASED ON SEX AND/OR RACE

1. Has Plaintiff proven by a preponderance of the evidence that Defendant denied her a promotion within the statute of limitations period and that Plaintiff's sex was a motivating factor in Defendant's decision?

Yes _____ No X

2. Has Plaintiff proven by a preponderance of the evidence that Defendant denied her a promotion within the statute of limitations period and that Plaintiff's race was a motivating factor in Defendant's decision?

Yes _____ No X

If your answer to Question 1 and/or 2 is "yes," you have found for the Plaintiff on one or more of her claims of discrimination under Title VII; therefore, proceed to Section II. If your answers Questions 1 and 2 are both "no," then skip Section II, as you have found for the Defendant on these claims; proceed directly to Section III.

II. DETERMINATION OF DAMAGES FOR PLAINTIFF'S TITLE VII CLAIMS

3. Do you find that Plaintiff should be awarded economic damages (as defined in Instruction No. 11)?

Yes _____ No _____

If your answer to Question 3 is "yes," what amount of economic damages should be awarded to Plaintiff for Defendant's violation(s) of Title VII?

\$ _____

4. Any award of economic damages must be reduced by any amount that the Plaintiff earned or could have earned by reasonable effort (as set forth in Instruction No. 13). Has Defendant proved by a preponderance of the evidence that Plaintiff failed to make reasonable efforts to minimize her damages?

Yes _____ No _____

If your answer to Question 4 is "yes," what amount should be deducted from the award of economic damages (the amount that you put in your answer to Question No. 3) under Title VII?

\$ _____

5. Do you find that Plaintiff should be awarded an amount that reasonably compensates Plaintiff for losses after the date of trial?

Yes _____ No _____

If your answer to Question 5 is "yes," what amount of future damages should be awarded to Plaintiff for Defendant's violation(s) of Title VII?

\$ _____

6. Do you find that Plaintiff should be awarded non-economic damages for any emotional distress, pain, suffering, and mental anguish (as defined in Instruction No. 12) for her claim(s) of discrimination under Title VII?

Yes _____ No _____

If your answer to Question 6 is "yes," in what amount?

\$ _____

7. Do you find that Plaintiff should be awarded punitive damages (as defined in Instruction No. 14) for her claims of discrimination under Title VII?

Yes _____ No _____

If your answer to Question 7 is "yes," in what amount?

\$ _____

III. SECTION 1981: DISCRIMINATION BASED ON RACE

8. Has Plaintiff proven by a preponderance of the evidence that Defendant denied her a promotion within the statute of limitations period and that Plaintiff's race was a but-for cause in Defendant's decision?

Yes _____ No X

If your answer to Question 8 is "yes," you have found for the Plaintiff on her claim of discrimination under Section 1981; therefore, proceed to Section IV. If your answer is "no," then skip Section IV, as you have found for the Defendant on this claim. Each juror shall sign and date the verdict form.

IV. DETERMINATION OF DAMAGES FOR PLAINTIFF'S SECTION 1981 CLAIM

9. Do you find that Plaintiff should be awarded economic damages (as defined in Instruction No. 11)?

Yes _____ No _____

If your answer to Question 9 is "yes," what amount of economic damages should be awarded to Plaintiff for Defendant's violation of Section 1981?

\$ _____

PLEASE SIGN AND DATE THE VERDICT FORM.

Dated this 30 day of September, 2021

JUROR NAMES REDACTED